(d) Only the chairman or co-chairman of the committee to which a proposed ordinance or resolution was erroneously referred, as well as the chairman or co-chairman of the committee claiming jurisdiction over the proposed ordinance or resolution, may move that the referral be declared erroneous, and ask for its correction. However, the presiding officer may motu propio rectify an erroneous referral.

Section 34. *Period to Report and Fine On Unacted Referrals* - (a) The committee shall submit a report on the proposed ordinances or resolutions within twenty- one (21) days after it has been referred to it, subject to extension upon request of the chairman and concurred by a majority vote of the sanggunian. The presiding officer shall impose a fine of Two Thousand Pesos (P2,000.00) against any committee deliberately delaying or neglecting to act on referrals within the prescribed period. The fine shall be deposited and kept in the possession of the secretariat or to the designated member of the sanggunian which may be utilized for any purpose upon majority vote of all of the sanggunian members through a resolution adopted for the purpose. Moreover, unacted committee referrals or measures laid on the table, may be taken back for consideration on motion duly approved by majority vote of all the members present, there being a quorum under the "Other Matters" of the Calendar of Business. The committee of the whole, created for the purpose, shall forthwith dispose the unacted measure without further delay, otherwise the same sanction shall be imposed. A committee referral maybe further referred or recommended for disposal by the committee of the whole by the concerned committee to which it was referred.

(b) If the Committee report on a proposed ordinances or resolutions is favorable, it shall be included in the calendar of business.

(c) If the committee action on a proposed ordinances or resolutions is unfavorable, it shall be laid on the table and within ten days (10) days, notice of the action taken will be furnished the author or authors concerned stating the reason or reasons for such action; Provided, that within five (5) days after receipt of the notice the Sangguniang panlalawigan may consider the committee recommendation and take appropriate action when necessary.

Section 35. *Urgent Executive Measures* – (a) Any legislative matter duly certified by the governor as urgent pursuant to sub-paragraph (iv), (1), (b), Article 85 of the Rules and Regulations Implementing Republic Act No. 7160, whether or not it is included in the calendar of business, may be presented and considered by the Sangguniang panlalawigan in the same session by suspending the rules that requires majority vote of all the members present during the session, there being a quorum The certificate of urgency shall always be attached in the executive transmittal for legislative consideration.

(b) The Sangguniang panlalawigan may, on motion made by the chairman of the committee concerned, consider an ordinance or resolution as urgent and consideration thereof shall be scheduled according to a timetable or act on the matter immediately. A majority vote of all the members present during the session, is required to consider an ordinance or resolution as urgent and for immediate consideration.

(c) If the said motion is approved, the Sangguniang panlalawigan shall forthwith prepare a detailed timetable fixing the time or date on or before which the proposed ordinance must be reported by the committee concerned, the number of days or hours to be allotted for the consideration of the measure on second reading, and the date or hour which proceeding must be concluded and final vote on said measure taken, unless acted upon immediately.

Section 36. *Second Reading and Debate* - (a) No proposed ordinance or resolution shall be considered on second reading in any regular session unless it has been reported out by the proper committee to which it was referred or certified as urgent by the governor.

(b) On the day set for the consideration of a proposed ordinance or resolution for second reading, the same shall be read in full with the amendments proposed by the committee, if any, unless copies thereof have been distributed earlier and such reading is dispensed with. Thereafter, the proposed ordinance or resolution shall be subject to debate and pertinent motions.

By: PROVINCE OF SIBUGAY AUTHENTICATED OSSEC Date: